



PM-PC-02

PROMOVE – CRAFT YOUR CAREER

ANNEXURE A – NON-DISCLOSURE AGREEMENT (NDA)

1. PREAMBLE AND LEGAL ENFORCEABILITY

Developers / Team Members:

- Dishant Mishra
- Chandi Charan Mahato

Along with their respective organizations, teams, employees, associates, contractors, and any individuals acting under their authority (collectively referred to as the “Receiving Party”).

This Agreement establishes strict obligations of confidentiality, non-disclosure, non-replication, and data protection with respect to all proprietary, technical, and strategic information related to the **ProMove Innovation Cloud**. This Non-Disclosure Agreement (“Agreement”) forms an integral and inseparable part of the Work Order issued by **ProMove – Craft Your Career (an initiative of Muntaz Energy Private Limited)** (hereinafter referred to as the “Company”).

This Agreement is legally binding upon the following individuals:

Project Heads:

- Telukala Dipanshu
- Akshat Garg

2. DEFINITION OF CONFIDENTIAL INFORMATION

For the purpose of this Agreement, “Confidential Information” shall include, but not be limited to:

- Platform architecture, workflows, system logic, and technical configurations
- All dashboards, features, UI/UX elements, backend processes, and integrations
- Business models, operational strategies, pricing structures, and execution frameworks
- User data, institutional data, internal records, and analytics
- Documentation, screenshots, designs, wireframes, and communication exchanges
- Any information shared verbally, digitally, physically, or implied during the course of engagement

All such information shall be deemed **strictly confidential and proprietary to the Company**, irrespective of its format or mode of transmission.





3. STRICT NON-DISCLOSURE OBLIGATION

The Receiving Party shall:

- Not disclose, publish, transmit, or make available any Confidential Information to any third party under any circumstances
- Not use Confidential Information for any purpose other than execution of the assigned Work Order
- Ensure that no unauthorized person gains access to such information, whether intentionally or due to negligence

This obligation applies to:

- Direct disclosure
- Indirect disclosure
- Accidental, negligent, or unauthorized exposure

Any violation shall be treated as a **material breach, irrespective of intent.**

4. NON-REPLICATION, NON-REUSE, AND NON-COMPETE RESTRICTION

The Receiving Party expressly agrees that:

- No component of the ProMove Innovation Cloud—including architecture, workflows, dashboard structures, system logic, or feature design—shall be copied, replicated, reverse-engineered, or reused
- No similar or competing platform shall be developed using knowledge, insights, or exposure gained through this engagement
- No derivative work, adaptation, or modification shall be created for internal or external use

This restriction shall apply:

- During the course of the project
- After completion or termination
- Indefinitely, without limitation of time or geography

5. COPYRIGHT PROTECTION AND STATUTORY LIABILITY

The Receiving Party acknowledges and agrees that:

The ProMove Innovation Cloud, including its design, structure, workflows, and system logic, is protected under **active copyright registration held by the Company for the period 2026–2027**





Any unauthorized use, duplication, disclosure, or exploitation shall constitute:

- A violation under the **Copyright Act, 1957 (India)**
- An infringement of intellectual property rights
- A punishable offense under applicable civil and criminal laws

The Company reserves full rights to initiate:

- Civil action for injunctions, damages, and compensation
- Criminal proceedings for copyright infringement and misuse

The Receiving Party shall be liable for:

- Financial damages (direct and indirect)
- Loss of business and reputational harm
- Legal costs and enforcement expenses

6. DATA SECURITY, STORAGE, AND ACCESS CONTROL

The Receiving Party shall ensure strict data protection protocols, including:

- Secure storage of all Confidential Information with restricted access controls
- Access limited only to authorized individuals directly involved in execution
- Prevention of unauthorized copying, downloading, or external transfer

The Receiving Party shall strictly refrain from:

- Storing data on personal devices without authorization
- Transferring information to third-party platforms or external storage systems
- Creating unauthorized backups or replicas

Any lapse in data security shall be considered a **serious contractual and legal violation**.

7. LIABILITY FOR TEAM MEMBERS AND ASSOCIATED PERSONNEL

The Project Heads shall bear **absolute and unconditional responsibility** for:

- All actions of their developers, employees, contractors, and associated personnel
- Ensuring that every individual involved complies fully with this Agreement

Any breach committed by:

- **Dishant Mishra**
- **Chandi Charan Mahato**
- **Or any other associated personnel**

shall be treated as a **direct breach by the Project Heads themselves**, attracting full legal liability without exception.





8. NO RETENTION, COPYING, OR POST-ENGAGEMENT USAGE

Upon completion or termination of the engagement, the Receiving Party shall:

- Immediately cease all use of Confidential Information
- Return or permanently delete all materials, data, and documents provided by the Company
- Provide written confirmation of complete data deletion and non-retention

The Receiving Party shall not:

- Retain copies in any form
- Use any part of the system or information in future projects
- Refer to or reproduce any aspect of the platform

This obligation shall remain enforceable indefinitely.

9. BREACH, DAMAGES, AND LEGAL ENFORCEMENT RIGHTS

In the event of any breach, the Company shall have the absolute and unilateral right to:

- Initiate immediate legal proceedings without prior notice
- Seek injunctions to prevent further misuse or disclosure
- Claim full compensation for damages suffered

The Receiving Party acknowledges that:

- The information involved is highly sensitive and commercially critical
- Any breach may result in irreparable harm to the Company

Accordingly, the Receiving Party agrees to be liable for:

- Direct financial losses
- Indirect and consequential damages
- Legal fees and enforcement costs

10. SURVIVAL OF CONFIDENTIALITY OBLIGATIONS

- All obligations under this Agreement shall:
- Continue beyond completion or termination of the Work Order
- Remain valid indefinitely

There shall be **no limitation period** for enforcing:

- Confidentiality
- Non-replication
- Intellectual property protection



11. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by the laws of India.

Any disputes arising shall be subject to the jurisdiction of the competent courts as determined by the Company.

ACCEPTANCE AND ACKNOWLEDGEMENT

By signing below, all parties confirm that:

- They have read and understood this Agreement in full
- They agree to be legally bound by all provisions
- They accept full liability for any breach

FOR AND ON BEHALF OF

ProMove – Craft Your Career

(Muntaz Energy Private Limited)

Authorized Signatory

Name: **Mohammed Labid Khan**

Signature:

PROMOVE CRAFT YOUR CAREER
by MEPL
Labid Khan
DIRECTOR

RECEIVING PARTY

Project Heads:

Telukala Dipanshu

Signature: _____

Akshat Garg

Signature: _____

Developers / Team Members:

Dishant Mishra

Signature: _____

Chandi Charan Mahato

Signature: _____

Date: _____